

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, LLC,
Plaintiff,

Case No.: 2023-CC-2098

vs.

GREGORY DOUGLAS BURKETT and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

**MOTION FOR DEFAULT JUDGMENT FOR NONPAYMENT OF RENT INTO REGISTRY OF
COURT**

COMES NOW, the Plaintiff, by and through the undersigned counsel and moves this Honorable Court to enter Default Judgment in this cause, and in support of the motion states:

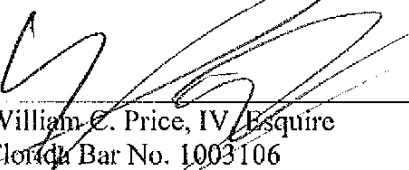
1. Plaintiff has brought an action against the Defendant for a writ of possession for the premises:
900 9th Ave East, Lot 214 of Colonial Mobile Manor Mobile Home Park, for his failure to comply with the rules and regulations of Colonial Mobile Manor Mobile Home Park, pertaining to the violation of park rules as well as seeking damages for the nonpayment of rent throughout the pendency of this action.
2. Specifically, the Defendant is accused of intentionally killing a co-resident with a firearm on park grounds.
3. This conduct is in violation of Rule 2 of Colonial Mobile Manor Mobile Home Park and Florida Statutes.
4. As a result, the Plaintiff terminated the right of the Defendant to reside on the premises.
5. Upon doing so, it ceased accepting rent from the Defendant.
6. In his filing with this Court, essentially, the Defendant denies the claim, and asserts that his conduct does not violate the park rules.

7. For the Defendant to be permitted to present his defenses to the Plaintiff's Complaint, the Defendant is obligated to pay unpaid rent into the Registry of the Court pursuant to Fla. Stat. §723.063 (2); failure to pay rent into the Registry of the Court constitutes a waiver of all of the Defendant's claimed defenses.
8. The Defendant owes rent for the months of May, June and July of 2023, which is the sum of \$2,260.50, which is \$723.50 for May 2023, June 2023 and July 2023, with \$45.00 late fees for the months of May and June. The Defendant also owes past due water and sewer fees in the amount of \$1,213.25, for a total due of \$3,473.75 arising out of this action.
9. The Court notified the Defendant of its obligation to pay rent into the registry of the Court in its Amended Eviction Summons/Residential, a copy of which is attached hereto as Exhibit A.
10. Plaintiff in its complaint is seeking a writ of possession, however, in Count 2 of the Complaint, the Plaintiff refers also to damages and identifies the amount of rent payable by affidavit of indebtedness filed in this matter.
11. Fla. Stat. §723.063 (2) entitles the Plaintiff to immediate default judgment on all counts on Defendant's failure to comply with the statute.

WHEREFORE, the Plaintiff asks this Court to enter an Order of Default Judgment on all counts.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Plaintiff's Motion for Default Judgment for Nonpayment of Rent into Registry of Court has been furnished to the Defendants, GREGORY DOUGLAS BURKETT at 14470 Harlee Road, Palmetto, FL 34221 and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #214, Palmetto, Florida, 34221 on this 13 day of July, 2023.


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